

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201202777	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/14/2012 7:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/14/2013	Precinct: 90		
Date/Time CV Reported Fri, 03/02/2012 12:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/02/2012 12:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Antonelli	00471	948622	090 PCT
2. POM Michael Dimambro	01455	948895	090 PCT
3. POM Liam Crowley	01058	948827	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Apostolos Masouridis	03180	949278	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Antonelli	Abuse: PO Matthew Antonelli stopped § 87(2)(b)	A . Substantiated
B . POM Michael Dimambro	Abuse: PO Michael Dimambro stopped § 87(2)(b)	B . Substantiated
C . POM Matthew Antonelli	Abuse: PO Matthew Antonelli frisked § 87(2)(b)	C . Substantiated
D . POM Liam Crowley	Abuse: PO Liam Crowley searched § 87(2)(b)	D . Unsubstantiated
E . POM Matthew Antonelli	Abuse: PO Matthew Antonelli issued a summons to § 87(2)(b)	E . Unsubstantiated
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on March 2, 2011, via the on-line website (encl. 4A-4D). On February 14, 2011, at approximately 7:50 p.m., § 87(2)(b) interacted with Officers Matthew Antonelli, Michael DiMambro, Liam Crowley, and Apostolos Masouridis inside of § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A-Abuse of Authority: PO Matthew Antonelli stopped § 87(2)(b)

Allegation B- Abuse of Authority: PO Michael DiMambro stopped § 87(2)(b)

§ 87(2)(g) it is recommended that **allegations A and B be closed as substantiated.**

Allegation C- Abuse of Authority: PO Matthew Antonelli frisked § 87(2)(b)

§ 87(2)(g) it is recommended that **allegation C be closed as substantiated.**

Allegation D- Abuse of Authority: PO Liam Crowley searched § 87(2)(b)

§ 87(2)(g) it is recommended that **allegation D be closed as unsubstantiated.**

Allegation E- Abuse of Authority: PO Matthew Antonelli issued a summons to § 87(2)(b)

§ 87(2)(g) it is recommended that **allegation E be closed as unsubstantiated.**

§ 87(4-b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) rejected mediation over the telephone on March 6, 2012.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic male § 87(2)(b) and has black hair and brown eyes. At the time of the interview, § 87(2)(b) resided at § 87(2)(b) and § 87(2)(b) located at § 87(2)(b) in Brooklyn.

CCRB Testimony

§ 87(2)(b) filed this complaint with the CCRB on March 2, 2012 (encl. 4A-4D). He provided telephone statements on March 6, 2012, and May 9, 2012 (encl. 4G and 4N). On March 9, 2012, § 87(2)(b) provided a sworn statement (encl. 4H-4M). § 87(2)(g)

On February 14, 2012, at approximately 7:50 p.m., § 87(2)(b) was entering his building, § 87(2)(b) in Brooklyn, through the building's rear entrance, which faces § 87(2)(b). When asked if the door had been open or if he unlocked it, he stated that this door remains open due to it being broken, and had been open upon his entering. § 87(2)(b) did not specify whether this meant that the door was ajar or simply unlocked. § 87(2)(b) entered a vestibule and passed through another door that leads to a hallway that connects to the building's main lobby. As § 87(2)(b) opened the door into this lobby, he saw four uniformed officers, including PO Matthew Antonelli, of 90th Precinct IRT, standing approximately two feet from the doorway. The investigation identified the other three officers as PO Michael DiMambro, PO Liam Crowley, and PO Apostolos Masouridis. All of the officers were assigned to the 90th Precinct.

PO Crowley asked § 87(2)(b) if he lived in the building and asked him for identification. § 87(2)(b) asked why he was being asked for identification but provided it after PO Crowley requested it a second time. PO Crowley handed § 87(2)(b)'s identification to PO DiMambro, who asked § 87(2)(b) to place his hands against the wall. In his telephone statement, § 87(2)(b) attributed this command to PO Antonelli. § 87(2)(b) complied and placed his outstretched arms and palms against the wall. PO DiMambro frisked him up and down his arms and legs as well as his front and back pants pockets. In his telephone statement, § 87(2)(b) stated that PO Antonelli had frisked him.

In his telephone statement from March 6, 2012, § 87(2)(b) stated that PO DiMambro searched his right rear pocket. PO Crowley told § 87(2)(b) to empty the contents of his pockets and § 87(2)(b) took out a pack of Newport cigarettes, change, and possibly a set of keys. In his telephone statement from March 6, 2012, he related that PO Antonelli had asked him to empty his pockets.

PO Crowley returned § 87(2)(b)'s identification. § 87(2)(b) walked away from the officers toward the lobby. As he was walking and his back was turned, one of the officers said, "Have a nice day" in a sarcastic tone. § 87(2)(b) replied, saying, "You guys are a bunch of clowns." Two elderly females had been sitting near the elevator at this time. § 87(2)(b) did not see them react in any manner to his comment. One of the officers told § 87(2)(b) to stop. § 87(2)(b) was again asked for his identification, which he provided. PO Antonelli issued § 87(2)(b) a summons for unreasonable noise. § 87(2)(b) had been "upset" during the incident but never raised his voice or yelled. § 87(2)(b) received the summons and went upstairs to his apartment.

On August 7, 2012, § 87(2)(b) was contacted by telephone and was asked if he would be willing to view photographs of potential subject officers. § 87(2)(b) replied that he would, and was scheduled to view photographic arrays on August 16, 2012. § 87(2)(b) missed this appointment and was rescheduled to view the arrays on August 24, 2012. § 87(2)(b) called the CCRB on August 24, 2012, and stated that he was no longer interested in coming to the CCRB to view the photographs.

NYPD Statements:

Subject Officer: PO MATTHEW ANTONELLI

- PO Antonelli, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has brown hair and green eyes.
- On February 14, 2012, PO Antonelli was assigned to 90th Precinct Impact Post 5 in uniform from the hours of 1:30 p.m. to 10:05 p.m. He was not assigned a partner, and worked on foot for the entirety of the tour.

Memo Book

At 7:50 p.m., PO Antonelli issued C-Summons § 87(2)(b) for unreasonable noise to § 87(2)(b). A Stop, Question and Frisk report for suspicion of criminal trespass was also prepared. § 87(2)(b) entered the rear of § 87(2)(b) without a key. While walking away after his address was verified, § 87(2)(b) screamed, and cursed, “Go fuck yourself,” causing public alarm in the building’s lobby. The summons was served at 8:10 p.m. (encl. 5A-5D).

Summons

PO Antonelli wrote Summons § 87(2)(b) for § 87(2)(b) “Discon- unreasonable noise” is written in the summary (encl. 9J).

Stop, Question and Frisk Report

The related Stop, Question and Frisk report shows that § 87(2)(b) was stopped at the rear exit of § 87(2)(b) for being suspected of criminal trespass. It is noted that he was frisked due to furtive movements. § 87(2)(b) entered the rear door of the building without using a key (encl. 5E). A handwritten copy of the report was not obtained by the investigation.

CCRB Testimony

PO Matthew Antonelli was interviewed at the CCRB on April 26, 2012, and June 14, 2012 (encl. 5F-5I). On February 14, 2012, at approximately 7:50 p.m., PO Antonelli noticed § 87(2)(b) walk in through the rear of § 87(2)(b) by pulling the door to the rear entrance open without using a key. PO Antonelli had been inside of the building at this time and did not specify how he was able to tell that § 87(2)(b) had not used a key. PO Antonelli cited firearms and trespassing as being issues that affected the area around this building. There are clear signs on the outside of this door stating that individuals cannot enter through this door. PO Antonelli was accompanied by one or two uniformed male officers whose identities he could not recall. PO Antonelli could not recall how long he and the other officers had been at this location.

PO Antonelli stopped § 87(2)(b) and asked him for identification. § 87(2)(b) protested, stating that he lived there and asked why he needed to provide his identification. He attempted to walk past the officers. PO Antonelli explained that he could not enter through the back door, and that he could be arrested for criminal trespass if he did not live there. PO Antonelli verbally emphasized to § 87(2)(b) that he was not free to leave and that the officers needed to see his

identification. § 87(2)(b) provided his identification after PO Antonelli asked for it more than once. § 87(2)(b) appeared frustrated and slightly irate. PO Antonelli did not specify what behavior exhibited by § 87(2)(b) led him to believe that he was irate.

After he provided his identification, PO Antonelli frisked § 87(2)(b). He could not recall where on his person he frisked him. PO Antonelli frisked § 87(2)(b) because he feared for his safety, due to § 87(2)(b) initially refusing to provide identification and his demeanor. PO Antonelli also described “furtive movements” as being factors in his decision to frisk him. When asked to specify what specific movements he was referring to, PO Antonelli cited § 87(2)(b) attempting to walk away, and turning his back to the officers. PO Antonelli also cited § 87(2)(b) moving his hands in a certain way, but was unable to recall the specific hand movements. PO Antonelli had not observed any bulges in any of § 87(2)(b)'s pockets. In his second interview, PO Antonelli also cited § 87(2)(b) being nervous as a factor in the frisk. He had not mentioned this factor in his first interview and did not describe § 87(2)(b)'s nervousness in detail. § 87(2)(b) was not searched at any point, and was not asked by any officer to empty his pockets. PO Antonelli checked § 87(2)(b)'s identification and prepared a Stop, Question and Frisk report.

§ 87(2)(b) was allowed to walk away and he walked towards the lobby. As he was entering an elevator, § 87(2)(b) said, “Go fuck yourself.” This action caused a group of an unknown number of elderly females that comprise a NYCHA patrol to express alarm verbally. During his first interview, PO Antonelli said, “Oh my God” to imitate the response of these females. § 87(2)(b) was stopped again and PO Antonelli radioed for additional officers that responded to the scene. PO Antonelli then issued § 87(2)(b) a summons. § 87(2)(b) was allowed to leave at this point.

Subject Officer: PO MICHAEL DIMAMBRO

- *PO DiMambro, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has brown hair and brown eyes.*
- *On February 14, 2012, PO DiMambro was assigned to 90th Precinct Impact Post 4 in uniform from the hours of 1:30 p.m. to 10:05 p.m. He was not assigned a partner, and worked on foot.*

Memo Book

PO DiMambro did not have any memo book entries regarding this incident (encl. 6A-6C).

CCRB Testimony

On October 18, 2012, and January 25, 2013, PO DiMambro was interviewed at the CCRB (encl. 6D-6G). On February 14, 2012, at approximately 7:50 p.m., PO DiMambro observed § 87(2)(b) enter through the back door of § 87(2)(b) a NYCHA building. When asked which other officers had been present, PO DiMambro stated that PO Antonelli, PO Crowley, and PO Masouridis would have also been present. He then stated that he could not recall which other officers aside from PO Antonelli would have been at the scene. PO DiMambro stated that officers were on high alert due to an officer having been shot in the vicinity of the location two days prior. Due to this, officers wished to ensure that no trespassers entered the building. He related that the location was in a high-crime area, where weapons were a concern.

Upon observing § 87(2)(b) enter, PO DiMambro had been standing by a staircase approximately 30 feet away from the door, which was closed. In his first interview, PO DiMambro stated that he did not see whether or not § 87(2)(b) used a key to enter the door. In his second interview, PO DiMambro was asked if he had had any particular reason to believe that § 87(2)(b) was not a building resident and he replied that § 87(2)(b) had entered the building's back door without a key. PO DiMambro stated that § 87(2)(b) entering through the back door

would have been a factor in his believing that he was not a resident. PO DiMambro stated that officers would stop individuals who entered through the back door, since rear doors were often left unlocked or had broken locks, allowing people to enter and cause problems. PO Dimambro did not know if the lock for the rear door was broken.

§ 87(2)(b) was asked if he lived in the building and he became irate, walking away from and cursing at the officers. PO DiMambro initially stated that § 87(2)(b) was asked for identification. When asked which officer asked him for identification, he stated that he could not recall who would have done so, and that asking for identification in this situation would be standard procedure for officers. PO DiMambro later stated that he did not independently recall § 87(2)(b) being asked for identification. PO DiMambro noted that PO Antonelli was the lead officer during this interaction.

PO DiMambro could not recall if § 87(2)(b) acted in any manner which would have caused him to fear for his safety as far as physical actions. He did not recall if § 87(2)(b) was frisked or searched by any officer including himself. No officer asked § 87(2)(b) to empty his pockets. § 87(2)(b) was issued a disorderly conduct summons after cursing at officers and yelling, "Go fuck yourself." PO DiMambro stated that this would have caused alarm to individuals in the building, but could not recall how.

Subject Officer: PO LIAM CROWLEY

- PO Crowley, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has black hair and blue eyes.
- On February 14, 2012, PO Crowley was assigned to 90th Precinct Impact Post 2 in uniform from the hours of 1:30 p.m. to 9:05 p.m. He was partnered with PO Apostolos Masouridis and worked on foot.

Memo Book

PO Crowley did not have any memo book entries regarding this incident (encl. 7A-7C).

CCRB Testimony

On October 19, 2012, and January 25, 2013, PO Crowley was interviewed at the CCRB (encl. 7D-7G). On February 14, 2012, at approximately 7:50 p.m., PO Crowley received a radio call regarding a male being stopped in the rear of § 87(2)(b). He responded in order to ensure that the officers performing the stop were safe and had the situation under control. PO Crowley stated that robberies, burglaries and trespassing were issues that affect the neighborhood. PO Crowley was coming off of his meal period and walked to § 87(2)(b) with PO Masouridis. PO Crowley entered the back door, which was held open with a stick that prevented it from closing all the way.

PO Crowley observed § 87(2)(b) inside the lobby along with two other officers assigned to Impact foot posts whose identities he could not recall. This stop occurred next to the rear entrance of the building, leading PO Crowley to believe that the stop was made based on § 87(2)(b) being suspected of criminal trespassing.

Aside from yelling, § 87(2)(b) raised his hands and pointed in officer's faces. PO Crowley did not see if § 87(2)(b) was frisked or searched and denied performing either action. No officer asked § 87(2)(b) to empty his pockets. He could not recall what the summons § 87(2)(b) was issued had been for.

Subject Officer: PO APOSTOLOS MASOURIDIS

- PO Masouridis, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has brown hair and blue eyes.
- On February 14, 2012, PO Masouridis was assigned to 90th Precinct Impact Post 6 in uniform from the hours of 1:30 p.m. to 9:05 p.m. He was partnered with PO Liam Crowley and worked on foot.

Memo Book

At 7:50 p.m., one male was stopped at the rear of § 87(2)(b). At 8:10 p.m., PO Masouridis resumed patrol (encl. 8A-8C).

CCRB Testimony

PO Masouridis was interviewed at the CCRB on October 19, 2012, and January 31, 2013 (encl. 8D-8G). On February 14, 2012, at approximately 7:50 p.m., PO Masouridis received a radio call regarding a male being stopped. He and PO Crowley walked to the location and entered the building through the rear entrance. PO Masouridis stated that this rear door is usually held open by an obstruction that individuals place there, but did not state how he was aware of this. He also stated that an individual who had recently murdered an officer in the vicinity had entered a building through a rear door when committing that crime. He did not say how he knew this.

PO Masouridis could not recall how he would have entered through this door on this date. He observed § 87(2)(b) stopped inside of the building close to the rear entrance, flailing his arms and cursing at officers. There were two to four impact officers present. He could not recall their identities.

PO Masouridis and PO Crowley only observed the stop. PO Masouridis did not learn of the circumstances for the stop. § 87(2)(b)'s proximity to the back door led him to believe that he had entered through there.

§ 87(2)(b) was issued a summons and was released approximately ten minutes after PO Masouridis' arrival. PO Masouridis believed that the summons was for disorderly conduct. He could not recall if there were civilians in the lobby during the stop. PO Masouridis was unaware of the male being frisked or searched and did not perform either action. No officer asked § 87(2)(b) to empty his pockets.

NYPD Documents

SPRINT Report § 87(2)(b)

At 8:18 p.m., 90th Precinct IRT Foot Posts 4, 5, and 6 note that a summons had been served. Foot Post 2 is also noted on the SPRINT report (encl. 9A-9B).

Roll Call

The roll call shows that Impact Foot Post 2 corresponds to PO Liam Crowley, Foot Post 4 corresponds to PO Michael DiMambro, Foot Post 5 corresponds to PO Antonelli, and Foot Post 6 corresponds to PO Apostolos Masouridis (encl. 9C).

Officer Photographs and Arrays

Photographic arrays were prepared for Officers Masouridis, Crowley, and DiMambro. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Additional Evidence

On September 24, 2012, the undersigned investigator took a photograph of the rear entrance of § 87(2)(b) which faces § 87(2)(b). The photograph shows that the door to the entrance was held open by a piece of string tied to a railing. "No trespassing," and "prohibida la entrada," or "entrance prohibited" in Spanish, is noted on a sign above and to the right of the door (encl. 3).

Summons For Incident and Disposition

- On February 14, 2012, § 87(2)(b) was issued Summons Number § 87(2)(b), for disorderly conduct- unreasonable noise (encl. 9J). On February 5, 2013, a search § 87(2)(g) yielded negative results for this summons (encl. 10B). § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Status of Civil Proceedings

- § 87(2)(b) had not filed a notice of claim with the City of New York as of September 24, 2012, over seven months after the date of the incident (encl. 11).

Civilian Criminal Histories

- § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2D).

Subject Officers CCRB History

- PO Antonelli has been a member of the service for two years, with no substantiated allegations having been made against him (encl. 2A).
- PO DiMambro has been a member of the service for two years, with no substantiated allegations having been made against him (encl. 2B).
- PO Crowley has been a member of the service for two years, with no substantiated allegations having been made against him (encl. 2C).

Conclusion

Identification of Subject Officers

PO Antonelli was identified through his Tax ID number appearing on the summons that § 87(2)(b) was issued. § 87(2)(b) stated that the same officer who wrote the summons handed it to him. PO Antonelli himself stated that he handed § 87(2)(b) the summons. § 87(2)(g)

§ 87(2)(b) alleged that an officer he described as a white male with a stocky build, approximately 5'10" tall, in his mid-20's frisked him. § 87(2)(g)

§ 87(2)(b). However, upon being interviewed, PO Antonelli stated that he frisked § 87(2)(b). § 87(2)(b), § 87(2)(g). § 87(2)(b) stated that an officer

he described as a white or Hispanic male with an average build, approximately 5'9" tall, and approximately 25 years old, ordered him to empty his pockets. § 87(2)(g)

Allegations Not Pleaded

PO Crowley and PO Masouridis stated that they arrived to the location upon being asked to respond over the radio. PO Antonelli stated that he radioed for additional officers after the stop had already been initiated. § 87(2)(g)

Allegation A-Abuse of Authority: PO Matthew Antonelli stopped § 87(2)(b)

Allegation B- Abuse of Authority: PO Michael DiMambro stopped § 87(2)(b)

§ 87(2)(b) alleged that upon entering the rear entrance to the building where he resides, § 87(2)(b) he was stopped, asked for identification, instructed to place his hands against a wall and frisked. § 87(2)(b) stated that the door had been open, allowing him to enter without using a key. PO Crowley noted that the rear door had been held ajar with a stick. PO Antonelli stated that he asked § 87(2)(b) for identification upon observing § 87(2)(b) enter the back entrance of the building without using a key. He stopped § 87(2)(b) in order to verify that he was a resident of the building. PO Antonelli specified that he informed § 87(2)(b) that he was not free to leave, that he could be arrested and that he would need to show his identification. He also stated that he frisked § 87(2)(b)

PO DiMambro stated that § 87(2)(b) was approached after he noticed him enter through the back door. In his first interview, PO DiMambro stated that he had not seen if § 87(2)(b) had used a key to enter or not. In his second interview he stated that § 87(2)(b) had entered without using a key. PO Antonelli cited firearms and trespassing as being issues that affected the area around the building. PO DiMambro stated that the location was in a high-crime area, where weapons are a concern. PO Crowley stated that robberies, burglaries and trespassing were issues that affect the neighborhood. Both officers noted that an officer had recently been shot in the vicinity of the building.

Officers may make a request for information when they have an articulable reason to do so. Criminality does not have to be suspected. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1D-1N). In order for officers to forcibly stop someone, however, that individual must be suspected of criminality. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1D-1N). Court decisions have found police officers justified in performing requests for information within trespass affidavit buildings. This has been the case only when another factor has been present, such as the individual being questioned being in a large group, or an individual entering the building at the same time as an individual who is arrested for trespassing. The sole presence of factors justifying a request for information do not, however, permit a forcible stop of such person. People v. Almonte, N.Y.S.2d 818 (2011) (encl. 1A-1C).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: 5

Investigator:	_____	Bernardo Gutierrez	April 30, 2013
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date